

Qodeways Technologies Pvt. Ltd.

Pimpri-Chinchwad, Pune, Maharashtra, India.

www.qodeways.com | info@qodeways.com

OFFER LETTER

Mr. Swapnil Patil

Email: swapnilpatil8771@gmail.com

Phone: +91 7758 023925

Dear Swapnil,

We are excited to offer you the role of **Full Stack Developer** at **Qodeways Technologies Pvt. Ltd.** Your skills and experience make you a great fit for our team, and we look forward to the contributions you will bring. Every day, you will be counted on to make people's lives better by doing extraordinary things as well as being dependable. Our ethics, core values, performance culture, and commitment are to develop technology that provides value to our customers and our environment.

1. Your employment will be effective as soon as you join the services of the Organization, but in any case, not later than 01 August 2024 or such other date approved by the Organization in writing, failing which this offer shall automatically stand canceled. Your employment with the Organization shall commence on the date of your joining and shall be subject to the terms and conditions stated in the letter alongwith the annexures.
2. You are required to submit the documents stated in Annexure 'C' on the date of joining.
3. This offer is made to you based on the information and documents that you have furnished to the Organization.
4. The Organization reserves the right to conduct background checks, directly or indirectly at any time, to verify such information and documents that you have provided in support of your age, academic qualifications, previous experience, and other particulars. If any discrepancies are found in the information or documents furnished, or if the results of the background checks are found to be unsatisfactory, the Organization may withdraw / cancel this offer.
5. However, if at any time after your joining the organization, the aforesaid discrepancies are found, or if you have furnished false information or

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Accepted by:
Swapnil Patil | Full Stack Developer



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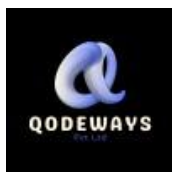
documents, or withheld or suppressed any material fact or information, the Organization shall be entitled to forthwith terminate your employment without notice.

6. You will be on probation for a period of three months from the date of joining and your employment shall be deemed to be confirmed unless otherwise communicated to you in writing.
7. During the probation period, your employment will be terminable by giving one month's notice in writing or salary in lieu thereof, by either side.
8. Upon joining, your compensation structure will be as described in Annexure 'A'.
9. Your employment will be governed by the terms and conditions detailed in Annexure B'.
10. All the contents of this offer along with the Annexures shall be confidential.
11. You will be governed by the policies of the Organization that are currently in practice and / or as may be implemented in the future, and as may be amended from time to time, and you will abide by the policies therein.

Kindly acknowledge the receipt of our offer, as well as having read and understood the terms of service given in the Annexures, by signing and returning the duplicate copy of this letter. We look forward to your joining the Qodeways Technologies Pvt. Ltd. family and to your valued contribution in taking this Organization towards its vision. We are sure that Qodeways Technologies Pvt. Ltd. will provide a conducive environment for your growth and learning trajectory.

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Annexure 'A'

Compensation Structure:

Components	Monthly
Basic Salary	7,500
House Rent Allowance (HRA)	1,500
Conveyance Allowance	2,000
Medical Allowance	2,000
Leave Travel Allowance	1,500
Performance Bonus	1,000
Total Gross Salary	15,000

You will be eligible for performance pay as per the Organization's policy, as determined or amended from time to time. The performance pay payable shall be determined based on your performance as well as the Organization's performance as assessed by the Management of the Organization.

Annexure 'B'

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1. Salary and Benefit Components

- An employee who has joined the Organization in a given calendar year will be eligible for salary revision effective 1st April of the following year, based on the performance assessment. The Management reserves the right to review/change and/or modify the salary revision period, at its sole discretion.
- Your compensation structure may be changed by the Organization, at its sole discretion, from time to time.
- If you are required to travel in connection with the Organization's business, you will be eligible for reimbursement of reasonable business expenses incurred in this connection, and other allowances according to the Organization's then prevailing policy pertaining to such travel.
- Variable/Performance Pay (where applicable): Performance pay quantum will be determined as per the Organization's policy, as amended from time to time. The performance pay payable shall be determined based on your performance as well as the Organization's performance as assessed by the Management of the Organization. The disbursement of the performance pay is subject to the employee being on active rolls of the Organization as of the closing hours of June 30th, as per the applicable year of disbursement.
- Any tax liability arising out of your salary, allowances, benefits, etc. shall be borne by you. The Organization may deduct such tax liability, or any amounts owed by you to the Organization from your salary or from any other amounts payable by the Organization to you.

2. Terms and Conditions

A handwritten signature in black ink, appearing to read 'Swapnil Patil', is written over a horizontal line.

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- You will perform to the best of your ability all the duties as are inherent in your post and such additional duties as the Organization may call upon you to perform, from time to time. Your specific duties will be communicated, and you shall, at all times act in good faith and in the best interests of the Organization.
- While in the service of the Organization, you shall not, without the express written permission of the Management, undertake or concern yourself, directly or indirectly, with any other, paid or unpaid, business or work or assignment or educational course, whether part-time or full-time. In any case, you shall not use the name of the Organization or Qodeways Technologies Pvt. Ltd. for any purpose other than for the business of the Organization.
- If at any time, in the opinion of the Organization or its Management, which shall be final and binding, you are found guilty of misrepresentation, dishonesty, disobedience, disorderly behavior, negligence, indiscipline, absence from duty without permission, or of any conduct unbecoming of the status or the post you hold in the Organization, or of any other conduct considered by the Organization or its Management as detrimental to its interests, or in violation to the terms and conditions of your employment, the Organization shall be entitled to terminate your employment forthwith.
- You will always maintain the Organization's property in good condition, which may be entrusted to you for official use during the course of your employment and shall return all such property to the Organization prior to relinquishment of your charge, failing which the cost of the same will be recovered from you by the Organization.
- You shall be bound by all the present and future policies, rules, regulations, guidelines and procedures established by the Organization, which includes revisions to existing policies, and new policies issued from time to time. In the event of any conflict between the terms of your offer letter (including any Annexures thereto) and any policy, rules, regulations, guidelines or procedures of the Organization, the latter shall prevail.
- You shall indemnify, defend and hold harmless the Organization, Directors, Management, present and past employees and all other persons connected with the business of the Organization from and against any and all liability, claims, actions and proceedings (regardless of the outcome), judgment, loss or

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settlement thereof, whether civil or criminal, arising out of or resulting from any breach or violation of the terms of this offer letter, or any act or omission in bad faith, gross negligence, fraudulent or dishonest conduct.

3. Confidentiality and Non-Disclosure Agreement

- You acknowledge that during the course of your employment with the Organization, you will be privy to information of sensitive and confidential nature not known or available to the general public, including but not limited to trade secrets and intellectual property rights, engagements and projects and other details of (i) the Organization, (ii) the Organization's clients, and (iii) other third parties whose confidential information you may acquire in the course of performing any specific engagements (together 'Confidential Information'). Confidential Information includes, but is not limited to information relating to the Organization, its customer lists, employment policies, personnel, and information about the Organization's products and services, processes including ideas, concepts, projections, technology, manuals, drawing, designs, specifications, and all papers, resumes, records and other documents containing such Confidential Information.
- You acknowledge that the Confidential Information, being of a sensitive nature, it is imperative that such information is not disclosed and maintained in strictest confidence. Accordingly, you agree to maintain the Confidential Information in the strictest confidence and share with or otherwise disclose the same or part thereof to any persons (including but not limited to the Organization's and its client's competitors), other than those to whom you may be required to disclose any Confidential Information in the course of performance of your duties strictly on a 'need to know' basis. You further acknowledge that, it is imperative that you maintain the confidentiality of Confidential Information even after the cessation of your employment with the Organization and therefore, agree to be bound by the obligation of maintaining the confidentiality of the Confidential Information, even after the cessation of your employment.
- You shall not, during the performance of your services hereunder, take away or copy, electronically or otherwise, mail to yourself or any other person, any

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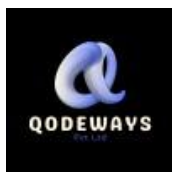
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Confidential Information (including copies) or part thereof, whether in paper form or any other form, including but not limited to CDs, floppy disks, USB drives or devices, cloud services, except to the extent required for the performance of your services hereunder. Further, you shall not, upon cessation of your employment, take with you, copy or electronically or otherwise, mail to yourself or any other person, any Confidential Information (including copies) or part thereof, whether in paper form or any other form, including but not limited to CDs, floppy disks, USB drives or devices, cloud services, and you shall return all the information and data available with you which has been obtained during the course of your employment with the Organization. You shall, on or before cessation of your employment, return all copies of all Confidential Information in your possession to the Organization without retaining any copy. Any copies incapable of being returned such as electronic copies, etc. shall, with the Organization's consent, be destroyed. On or before cessation of your employment, you shall certify in writing that you have either returned or destroyed all copies of Confidential Information in your possession.

- During your employment with the Organization or at any time thereafter, without the prior written consent of the Organization, you will not disclose, divulge, make public or make any use whatsoever of any information, knowledge, secrets, intellectual property rights, Confidential Information, about the Organization, its stakeholders or clients, obtained by you in the course of your employment with the Organization.
- You acknowledge that breach of any of your above obligations will cause irreparable damage to the Organization, its clients, stakeholders, third parties and therefore, the Organization shall, without prejudice to its other rights and remedies available in law or equity, be entitled to injunctive action or other suitable relief including, specific performance, to enforce the terms of this clause. Further, it will render you liable for summary dismissal as per clause 6 above.
- Your duty of confidentiality will survive the expiration or termination of your employment with the Organization.

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4. Intellectual Property Rights

- You shall assign to the Organization all rights, including, without limitation, copyrights, patents, trade secret rights, and other intellectual property rights associated with any ideas, concepts, techniques, inventions, processes, works of authorship, Confidential Information or trade secrets:
 - Developed or created by you, solely or jointly with others, during the course of your employment with the Organization.
 - That you conceive, develop, discover or make in whole or in part during the course of your employment with the Organization that relate to the business of the Organization or to the Organization's actual or anticipated research and development.
- All such ideas, concepts, techniques, inventions, processes, works of authorship, Confidential Information, trade secrets, or intellectual property rights developed or created by you during the course of your employment with the Organization shall be the exclusive property of the Organization and shall be considered as 'Works Made for Hire'.
- You hereby assign, transfer and convey to the Organization all your rights, titles and interests to such intellectual property rights including all benefits arising out of such intellectual property rights, to the fullest extent permitted by law.
- During the course of your employment with the Organization and thereafter, you shall execute, and shall cause your assigns and successors to execute, any and all documents as may be required to assign the intellectual property rights to the Organization or to obtain or maintain patents, copyright registrations, trade secret rights or similar rights for such intellectual property in the Organization's name.

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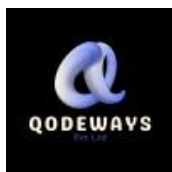
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5.Termination

- During the probationary period, your employment may be terminated by either party giving to the other party, 30 (thirty) days' notice in writing or salary (fixed components) in lieu of such notice, without assigning any reason whatsoever.
- After confirmation of your employment, either party may terminate your employment by giving to the other party 60 (sixty) days' notice in writing or salary (fixed components) in lieu of such notice, without assigning any reason whatsoever.
- You shall be liable to be terminated summarily without any notice period or salary in lieu thereof, for any misconduct, negligence, unauthorized disclosure of Confidential Information, breach of intellectual property rights, gross negligence in the discharge of your duties, or any other act considered by the Organization as detrimental to its interests or in violation to the terms and conditions of your employment.
- The Organization may terminate your employment, without notice period or salary in lieu thereof, if your performance is found to be unsatisfactory during your probationary period or thereafter, based on the periodic reviews of your performance conducted by the Organization.
- If your employment is terminated by you during any specific engagement with any client of the Organization, you agree to continue to perform services on behalf of the Organization till the completion of the engagement or for a minimum period of 30 (thirty) days, whichever is earlier. The terms of this paragraph shall be in addition to the requirement to give the notice period or salary in lieu thereof, in accordance with the terms of this clause.
- Upon termination of your employment, you shall return to the Organization all its property, including, but not limited to, any laptops, mobile phones, other devices, keys, entry passes, and any other property belonging to the Organization, within a period of 3 (three) days from your last working day with the Organization.

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6. Miscellaneous

- Any notice required or contemplated herein shall be in writing and shall be transmitted by postage prepaid, or by email, or by registered post with acknowledgement due or by a recognized courier services or through any messaging applications such as WhatsApp (delivery of which is denoted in accordance with the terms of such application) at the address and / or contact information set out herein. You shall notify any change in the contact information to the Organization forthwith.
- If, for any reason, a court of competent jurisdiction finds any provision contained herein, or portion thereof, to be unenforceable, that provision will be enforced to the maximum extent permissible and the remainder of the provisions will continue in full force and effect.
- This contract constitutes the entire understanding between the parties relating to this subject matter and supersedes all prior or simultaneous representations, discussions, negotiations, and understanding, whether written or oral.
- Any failure or delay to exercise or enforce any rights resulting hereunder shall not be a waiver of any such rights, nor shall any single or partial exercise thereof operate so as to bar the later exercise or enforcement thereof.
- Notwithstanding anything to the contrary contained herein, any dispute, controversy or claim arising out of or relating to this contract, including its construction, meaning, scope or validity thereof ("dispute"), shall be resolved by mediation administered electronically or in-person facilitated by a mutually appointed mediator.
- If the aforesaid mediation is unsuccessful, the dispute shall thereafter be finally resolved by arbitration under the Arbitration and Conciliation Act, 1996 administered electronically or in-person facilitated by a mutually appointed arbitrator. The arbitration proceedings shall be carried out by a sole arbitrator. The juridical seat of arbitration shall be Mumbai, India and the language of arbitration shall be English. The law governing the arbitration proceedings shall be Indian law. The decision of the arbitrator shall be final and binding on the parties.

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- The validity, construction, interpretation and performance of these terms shall be governed by Indian laws. Any dispute arising out of these terms shall be subject to the exclusive jurisdiction of Court in Mumbai, India.
- Any matter not stated above shall be, subject to any applicable laws, be dealt with in the manner as may be decided by the Organization.

A handwritten signature in black ink, reading 'Swapnil Patil', is written over a horizontal line.

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Annexure 'C'

Requirement of Documents (Self-attested):

1. PAN Card*
2. Aadhaar Card*
3. Graduation Marksheet(s)*
4. Post-graduation Marksheet(If any)

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